Application for Assisted Housing (USDA)

Lexington Village Apartments
21633 Liberty Street #1629, Lexington Park, MD 20653
Office: (301) 862-5732
Email: lexington@fifthmanagement.com

FOR OFFICE USE ONLY

Date received: _____
Time received: _____
Received by: _____
Application ID: _____

Before you begin

Please answer every question. If something does not apply to you, write “N/A.” Every adult (18 or older) who will live in the home must sign. You can also apply on paper. If you need help, or need this application in another format, please call us; we are glad to help. If there is a waitlist, your priority is set by the date and time we receive a COMPLETE application. If anything is missing, we will contact you within 10 days to let you know. We accept all lawful sources of income, including housing vouchers and rental assistance.

Every household is expected to be able to meet the basic responsibilities of tenancy — to pay rent on time, to keep the home clean and in good condition, and to not disturb your neighbors. You do not have to be able to do these things without help. If anyone in your household has a disability and needs a reasonable accommodation, you may ask for one at any time.

1. Family Summary

Start with the head of household, then add everyone else who will live in the home.

Full name	Relationship to head of household	Date of birth	Social Security number	Never issued a Social Security number	Full-time student (age 18 or older)
	Head of household			☐	☐
				☐	☐
				☐	☐
				☐	☐
				☐	☐
				☐	☐

Need more room? Attach another sheet and note the section.

Do you expect your household size to change in the next 12 months (for example, a new baby or a family member moving in)?

☐ Yes ☐ No

Is every member a U.S. citizen or an eligible noncitizen?

☐ Yes, all members ☐ No ☐ Not sure

2. How to reach you

Mailing address: _____

City: _____ **State:** _____ **ZIP:** _____

☐ My physical address is the same as my mailing address

Physical address (only if different from mailing): _____

Cellphone: _____ **Other phone:** _____

Email: _____

How should we send you written notices about your application?

☐ Mail ☐ Email

3. The home you are applying for

You are applying to Lexington Village Apartments, 21633 Liberty Street #1629, Lexington Park, MD 20653.

How many bedrooms do you need?

☐ 1 bedroom ☐ 2 bedrooms ☐ 3 bedrooms

Does anyone in your household need an accessible or adapted home?

☐ Yes ☐ No

If you need a reasonable accommodation for a disability, please explain below.

4. Household income

Add every source of income for everyone who will live in the home, before taxes. Include earned income (wages, self-employment, side-gigs) and unearned income (Social Security, SSI, pensions, benefits, support, and so on).

Who receives it	Type of income	Gross amount ($)	How often

Need more room? Attach another sheet and note the section.

☐ I have listed ALL sources of income for everyone in my household — including part-time or side jobs, self-employment, cash income, Social Security, SSI, pensions, benefits, unemployment, child support or alimony, and any other money the household receives.

5. Household assets

List every asset for everyone in the household. Assets include things like bank accounts, cash, stocks, jewelry, and real estate. Exclusions: retirement accounts (401ks), educational savings accounts (529s), and everyday personal belongings (family car). Please be thorough, we are required to verify every household's assets.

Type of asset	Current value ($)	Amount still owed (real estate) ($)

Need more room? Attach another sheet and note the section.

☐ My household has NO assets to list.

☐ I have listed ALL of my household's assets, or checked the box above because my household has none. (Retirement and education savings accounts do not count.)

In the last 2 years, has anyone in the household sold or given away anything of value for less than it was worth?

☐ Yes ☐ No

If yes: tell us about each one.

What it was	What it was worth ($)	Amount you received ($)	When

Need more room? Attach another sheet and note the section.

6. Deductions

These may qualify your household for deductions. Answer the questions below — we only ask for dollar amounts where they apply to you. Every amount should be what you actually pay OUT OF POCKET (what is not reimbursed or paid by insurance, a program, or anyone else).

Do you pay for childcare for a child under 13 so that an adult can work, look for work, or go to school?

☐ Yes ☐ No

If yes: How much do you pay for that childcare, out of pocket?: **$** _____

Does a household member with a disability have out-of-pocket costs (care or equipment) that let a family member work?

☐ Yes ☐ No

If yes: How much are those disability-assistance costs, out of pocket?: **$** _____

Is the head of household, spouse, or co-head 62 or older, or a person with a disability?

☐ Yes ☐ No

If yes: Unreimbursed, out-of-pocket medical expenses for the year: **$** _____

7. Housing History

List each Adult's current home first, then previous homes and landlords for each Adult household member.

Current home

Address/Community: _____ **Dates:** _____

Landlord/property manager: _____ **Landlord's phone:** _____ **Related to landlord?** ☐

Which household members lived here?: _____

Home 2

Address/Community: _____ **Dates:** _____

Landlord/property manager: _____ **Landlord's phone:** _____ **Related to landlord?** ☐

Which household members lived here?: _____

Home 3

Address/Community: _____ **Dates:** _____

Landlord/property manager: _____ **Landlord's phone:** _____ **Related to landlord?** ☐

Which household members lived here?: _____

Need more room? Attach another sheet and note the section.

In the last 5 years, has a court ordered anyone in your household to leave a rental home (an eviction judgment)?

☐ Yes ☐ No

If yes, please explain

_____

_____

_____

In the last 5 years, has anyone in your household received a written notice of lease violations from a landlord?

☐ Yes ☐ No

If yes, please explain

_____

_____

_____

8. References

Please give two references for the adults in your household — for example a current or former employer, a teacher, or someone who knows you well. Please do not list relatives.

Name	Phone	How they know you

Need more room? Attach another sheet and note the section.

States you have lived in during the last 7 years (other than your current state): _____

9. Required questions

Read each statement and check ONLY the ones that are true for your household. If none are true, leave them all unchecked.

You do not have to tell us about any arrest, charge, or conviction that has been sealed or expunged by a court or by law. Leave those records out when you answer the questions below. We will not deny your application because you left out a sealed or expunged record.

Check all that apply to your household:

- ☐ One or more household members were evicted from federally assisted housing for drug-related criminal activity in the last 3 years
- ☐ One or more household members are currently using an illegal controlled substance
- ☐ One or more household members are subject to a lifetime sex-offender registration requirement in any state
- ☐ One or more household members have been convicted of rape or another sexual offense under Maryland Criminal Law Title 3, Subtitle 3, or of the same crime in another state or in federal court
- ☐ I have read the statements above and checked every one that is true for my household (if none are true, I have left them all unchecked).

Do you currently receive other rental assistance or a Housing Choice Voucher?

☐ Yes ☐ No

If yes, which program, and when did it start?: _____

Do you currently live in subsidized housing?

☐ Yes ☐ No

These are the only criminal-history and subsidy questions on this application. We do not ask about arrests or charges, and we do not require drug or alcohol tests. If you are selected, we will make you a conditional offer before we run a criminal background check. After a conditional offer we may consider only felony convictions from the 5 years before you applied, in Maryland, another state, or federal court, and any conviction listed above that was not disclosed. You may give us written evidence that a record is wrong, evidence of rehabilitation, or other mitigating information, and we will do an individualized assessment. If we withdraw an offer, we will tell you the specific reason in writing. You may then ask us to reassess by giving us written evidence, and within 30 days you may ask for a copy of everything we relied on.

- ☐ I received the notice “Notice to Applicants: Fair Chance Housing Act Criminal History Screening Process” at the end of this application, before paying any application fee.

10. Additional questions

Vehicles (make, model, license plate)

Pet policy summary: Pets 25 lbs or under are welcome with the office's written permission before the pet moves in, up to one dog and two cats per home. There are no breed restrictions beyond the weight limit. There is no pet fee, pet deposit, or monthly pet charge. Each pet must be current on its rabies shots and licensed as local law requires. Assistance animals are not pets.

Do you have any pets?

☐ Yes ☐ No

If yes, tell us about each pet (type, breed, and weight)

How did you hear about us?:

11. Your certification and signature

☐ I certify that, if approved, this home will be my household's primary residence.

☐ I understand that a security deposit is due when I move in. If I cannot pay it all at once, I may pay it in installments under a payment plan; if an installment is missed, the rest of the deposit may become due at once.

☐ I understand that submitting this application does not guarantee housing, and that my household will be screened using the same resident-selection standards we apply to every applicant. An application may be denied because of a history of not paying rent or utilities, serious or repeated lease violations, or documented conduct that threatens the health, safety, or rights of residents or the property. If you will pay rent with an income-based housing subsidy (for example, a Housing Choice Voucher or USDA Rental Assistance), we will not deny your application because of your credit score, your lack of a credit score, or negative credit history from a time when you did not have the subsidy, and we will look at your income only to confirm program eligibility and that you can pay the part of the rent the subsidy does not cover.

☐ I certify that everything in this application is true, correct, and complete, and that I have not left out anything important. I understand that giving false information, or leaving out information, may disqualify my application or end my tenancy after I move in, and that knowingly making a false statement to obtain federally assisted housing is a violation of federal law. Leaving out a criminal record that has been sealed or expunged is not a false or incomplete answer.

☐ I authorize Fifth Management, and the agencies and tenant-screening companies it uses, to verify the information I have given and to obtain the reports and records needed to determine my eligibility, including rental history, credit reports, and sex-offender registry checks, and, only after a conditional offer, a criminal background check limited as state law allows. This authorization does not cover records from any program for the prevention or treatment of substance use disorders. I also consent to the release of information about my household, including wage-matching data, to USDA Rural Development (Rural Housing Service) and to Fifth Management, for use in determining eligibility and rental assistance. USDA may verify this information, including Social Security numbers, through federal data-matching programs.

If we deny your application, or take other adverse action, based on a consumer or tenant-screening report, we will tell you in writing, name the company that supplied the report, and explain your right to a free copy of it and to dispute it.

☐ I agree to receive communications about my application electronically. (You may withdraw this and use paper at any time.)

Every adult (18 or older) who will live in the home must sign. On paper, sign and date here; online, checking the boxes above and submitting serves as your electronic signature, and you may request a wet-signature form instead.

Signature	Printed name	Date
Signature	Printed name	Date
Signature	Printed name	Date
Signature	Printed name	Date

More than four adults? Additional adults sign an attached sheet.

12. Voluntary reporting

The information regarding race, ethnicity, and sex designation solicited on this application is requested in order to assure the Federal Government, acting through the Rural Housing Service, that the Federal laws prohibiting discrimination against tenant applications on the basis of race, color, national origin, religion, sex, familial status, age, and disability are complied with. You are not required to furnish this information, but are encouraged to do so. This information will not be used in evaluating your application or to discriminate against you in any way. However, if you choose not to furnish it, the owner is required to note the race, ethnicity, and sex of individual applicants on the basis of visual observation or surname.

Ethnicity

☐ Hispanic or Latino ☐ Not Hispanic or Latino ☐ Prefer not to answer

Race (choose all that apply)

☐ American Indian or Alaska Native

☐ Asian

☐ Black or African American

☐ Native Hawaiian or Other Pacific Islander

☐ White

☐ Prefer not to answer

Sex

☐ Male ☐ Female ☐ Prefer not to answer

13. Your rights under the Violence Against Women Act (VAWA)

Federal law protects applicants and tenants who are victims of domestic violence, dating violence, sexual assault, or stalking. You cannot be denied housing, or have your tenancy ended, because you are or have been a victim of these crimes. You have the right to confidentiality and to certain protections and emergency transfers.

You will receive the full VAWA Notice of Occupancy Rights (form HUD-5380) and the certification form (HUD-5382) when you are admitted, or with any notice that your application is denied, and you may ask us for them at any time.

☐ I acknowledge that I have been told about my rights under VAWA.

14. USDA nondiscrimination statement

The current USDA nondiscrimination statement applies to this community. The full statement is included with your application packet and on our website.

Return your completed application to Lexington Village Apartments, 21633 Liberty Street #1629, Lexington Park, MD 20653, in person or by mail.

USDA Nondiscrimination Statement

In accordance with Federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its Agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, religion, sex, disability, age, marital status, family/parental status, income derived from a public assistance program, political beliefs, or reprisal or retaliation for prior civil rights activity, in any program or activity conducted or funded by USDA (not all bases apply to all programs). Remedies and complaint filing deadlines vary by program or incident.

Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotape, American Sign Language, etc.) should contact the State or local Agency that administers the program or contact USDA through the Telecommunications Relay Service at 711 (voice and TTY). Additionally, program information may be made available in languages other than English.

To file a program discrimination complaint, a complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form, which can be obtained online at https://www.usda.gov/sites/default/files/documents/ad-3027.pdf and at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by:

(1) Mail: U.S. Department of Agriculture, Office of the Assistant Secretary for Civil Rights, 1400 Independence Avenue SW, Mail Stop 9410, Washington, DC 20250-9410; or

(2) Fax: (202) 690-7442; or

(3) Email: program.intake@usda.gov.

USDA is an equal opportunity provider, employer, and lender.

Notice to Applicants: Fair Chance Housing Act Criminal History Screening Process

This is the model notice published by the Maryland Department of Housing and Community Development. Please read it; Section 9 asks you to confirm you received it.

In accordance with the Maryland Fair Chance Housing Act, this notice is provided to explain how your criminal history record will be screened as part of your housing application. This process ensures that your application will be reviewed fully and fairly. This notice must be provided before you pay an application fee. Read the process below to understand how your eligibility will be determined:

1) Prequalification

This step includes the landlord's routine tenant screening, including checking your credit history, employment, income, payment delinquencies, bankruptcies, etc. This step does not screen for conviction history.

However, the landlord can ask you to disclose whether you have any of the following convictions under the Maryland Criminal Law Article, which may be grounds for a denial:

- Child Pornography Crimes under §11-207
- First or Second-Degree Murder under §2-201 or §2-204
- Human Trafficking under §3-1102
- Sex offenses under Title 3, Subtitle 3
- Out-of-state or federal equivalents of any of the above

You can also be asked to disclose:

- Whether you are currently required or have ever been required to register on a sex offender registry in Maryland or any other state.

If you are applying to live in federally assisted housing, you can also be asked to disclose if you have a conviction for:

- Producing, manufacturing, distributing, or dispensing methamphetamine in federally assisted housing.

2) Conditional Offer and Criminal Background Check

If you pass the prequalification stage, you will be given a "Conditional Offer" of housing. A conditional offer is not a final offer for housing. It is contingent upon the limited criminal history background check permitted under the Fair Chance Housing Act.

The following convictions can be the basis for a denial of a conditional offer:

- A felony conviction within the past five years,
- Convictions from the prequalification stage that were not disclosed, and
- Any out-of-state equivalents

3) Approval OR Denial and Right to Request a Reassessment

Your application may be approved, or the conditional offer may be withdrawn. If the conditional offer is withdrawn, the following needs to happen:

- The landlord will provide you with a written notice that includes the specific reason(s) why the conditional offer was withdrawn.
- Within 30 days of receiving the written notice, you can request that the landlord provide a copy of all of the information they used when considering your application, including criminal history records.
- Landlords must provide a response within 10 days of receiving the request.

If your application is denied, you have the right to request an individualized assessment. You must request an individualized reassessment in writing.

4) Reassessment

The Maryland Department of Housing and Community Development's Office of Tenant and Landlord Affairs (OTLA) has created a worksheet that you can use to guide your individualized assessment request.

The housing provider is not required to use the OTLA worksheet and can ask you to use a form they provided. However, the OTLA worksheet can help guide you in deciding what information to provide in your individualized assessment request.

If you do not use the OTLA worksheet, your individualized assessment request must be signed under penalty of perjury.

Keep this page for your records.